

Amendment No. 2 to HB1823

Johnson
Signature of Sponsor

AMEND Senate Bill No. 1968

House Bill No. 1823*

by deleting Section 5 and substituting:

SECTION 5. Tennessee Code Annotated, Section 49-6-3007, is amended by adding the following as a new subsection:

(i)

(1) The attendance records for a student who transfers or withdraws from an LEA; public school, including a public charter school; or private school after the school year has commenced must be maintained by the LEA, public school, or private school from which the student transferred or withdrew for the remainder of the school year.

(2) An LEA, public school, or private school that enrolls a student after the school year has commenced shall determine during the enrollment process whether the student was previously enrolled in another LEA, public school, or private school at any time during that same school year. If the LEA, public school, or private school determines that the student was previously enrolled in another LEA, public school, or private school in the same school year for which the student seeks to enroll in the LEA, public school, or private school, then the enrolling LEA, public school, or private school shall request the student's attendance records from each LEA, public school, or private school at which the student was previously enrolled during that same school year. A former LEA, public school, or private school that receives a request from another LEA, public school, or private school for a student's attendance records pursuant to this

subdivision (i)(2) shall provide the attendance records for the respective school year to the requesting LEA, public school, or private school within five (5) business days of the date on which the request was received.

(3) An LEA, public school, or private school that enrolls, after the school year has commenced, a student who was previously enrolled in another LEA, public school, or private school at any time during that same school year shall include the number of any unexcused absences accumulated by the student at the student's former LEA, public school, or private school in the same school year in the number of unexcused absences for the student at the enrolling LEA, public school, or private school, and shall implement the appropriate tier of the enrolling LEA's progressive truancy plan or the private school's policy for unexcused absences, if applicable.

(4) As used in this subsection (i), "private school" means a participating school, as defined in § 49-6-2602 or § 49-10-1402, or a private school that enrolls recipients, as those terms are defined in § 49-6-3502.